

The Board of Education of the Brecksville-Broadview Heights City School District met in special session at 7 p.m. on February 26, 2020 at the Education Center at the BOE Administrative Building, 6638 Mill Road, Brecksville, Ohio 44141 with the following members present:

The Treasurer advised the Board that the notice requirements of Section 121.22 of the Revised Code and the implementing rules adopted by the Board pursuant thereto were complied with for the meeting.

_____ moved the adoption of the following resolution:

A RESOLUTION AUTHORIZING THE TREASURER, THE SUPERINTENDENT OF SCHOOLS AND BOARD PRESIDENT TO SIGN CHANGE ORDERS FOR THE CAPITAL IMPROVEMENT PROJECT.

WHEREAS, the District is in the midst of large capital improvement project; and

WHEREAS, this resolution will (i) empower District Administrators to document CMR contingency spending through change orders and (ii) allow District Administrators to adjust the CMR scope of work as described below.

NOW, THEREFORE, BE IT RESOLVED by the Board of Education that after careful consideration and evaluation of the information before it:

Section 1. In the event the District is signing a change order to document spending CMR Contingency funds or Board approved allowances within the approved Guaranteed Maximum Price (GMP) Amendment(s), then the Treasurer may document that spending through a change order.

Section 2. In the event the District is adding to any GMP Amendment by adjusting the CMR's scope of work and the Architect is supportive of the Change Order, then:

The Treasurer is authorized to sign change orders in an amount not to exceed \$25,000.

The Superintendent of Schools and Treasurer jointly are hereby authorized to sign change orders in an amount not to exceed \$50,000.

The Superintendent of Schools, Treasurer and Board President jointly are hereby authorized to sign change orders in an amount not to exceed \$100,000.

All change orders over \$100,000 will be presented to the Board of Education for its consideration. All change orders are subject to certification of funds by the Treasurer and the total dollar amount that may be signed under this authority is capped at \$400,000 unless this Board provides additional approval.

Section 3. The CMR shall provide a monthly report to the District that tracks all change orders. The Treasurer shall provide a copy of that report or a summary to the Board of Education periodically.

Section 4. The Treasurer, Board President and the Superintendent of Schools, as appropriate, are each authorized to sign any certificates and documents and to take such actions as are necessary or appropriate to consummate the transactions contemplated by this Resolution.

Section 5. This Board finds and determines that all formal actions of this Board and of any of its committees concerning and relating to the adoption of this Resolution were taken, and that all deliberations of this Board and of any of its committees that resulted in such formal actions were held, in meetings open to the public, in compliance with the law.

Section 6. This resolution shall be in full force and effect from and immediately after its adoption

_____ seconded the motion and the roll being called upon the question of the adoption of the resolution, the vote resulted as follows:

CERTIFICATE

The undersigned hereby certifies that the foregoing is a true and correct copy of a resolution adopted at a meeting held on February 26, 2020, together with a true and correct extract from the minutes of said meeting to the extent pertinent to consideration and adoption of said resolution.

Craig G. Yaniglos, Treasurer